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Executive Order

WHEREAS, Under the provisions of Section 17 of the Act approved June 5, 1920, entitled "An Act to provide for the promotion and maintenance of the American merchant marine, etc.," the Shipping Board "is authorized and directed to take over on January 1, 1921, the possession and control of, and to maintain and develop, all docks, piers, warehouses, wharves and terminal equipment and facilities, including all leasehold easements, rights of way, riparian rights and other rights, estates and interests therein or appurtenant thereto, acquired by the President by or under the Act entitled 'An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, etc.' "; and

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WHEREAS, By a further provision of said Section 17, "the President may at any time he deems it necessary, by order setting out the need therefor and fixing the period of such need, permit or transfer the possession and control of any part of the property taken over by or transferred to the Shipping Board under this section to the War Department or the Navy Department for their needs"; and

WHEREAS, The piers known as the Hoboken piers, formerly the property of the North German Lloyd and Hamburg American Steamship Companies and of the Hoboken Shore Railroad, were acquired by the President under the Act referred to in paragraph I of Section 17 of the Act of June 5, 1920, hereinbefore recited, and are therefore subject to the provisions of said Section 17; and

WHEREAS, Piers 5 and 6 being parts of said property, and are no longer necessary to be retained in the possession and control of the War Department; now

THEREFORE, I do hereby determine that it is unnecessary for the War Department to retain such property, Piers 5 and 6 and direct that the possession and control of such property revert to the United States Shipping Board in their present condition without any expense to the War Department for salvaging.

WARREN G HARDING

THE WHITE HOUSE,
September 19, 1921.

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